

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
CHIEF JUDGE WILEY Y. DANIEL

Courtroom Deputy: Robert R. Keech
E.C.R./Reporter: Therese Lindblom

Date: October 5, 2011

Civil Action No: **09-cv-00908-WYD-CBS**

Counsel:

GLORIA HUIZAR,

Timothy D. Edstrom

Plaintiff,

v.

LEPRINO FOODS,

William C. Brittan

Defendant.

COURTROOM MINUTES

JURY TRIAL (DAY 3)

9:23 a.m. Court in Session - Jury not present

Discussion regarding jury instructions.

9:26 a.m. Jury enters

Defendant's witness **Sarah Jumps** sworn.

Direct examination by Defendant (Mr. Brittan).

EX ID: 3, 4, 5

9:32 a.m. Defendant's witness **Fernando Ron Villarosa** sworn.

Direct examination by Defendant (Mr. Brittan).

EX ID: I

9:45 a.m. Cross examination by Plaintiff (Mr. Edstrom).

Exhibit(s) C RECEIVED.

9:48 a.m. Defendant rests.

9:49 a.m. Bench conference regarding Plaintiff's rebuttal case-in-chief.

9:54 a.m. Interpreter Cathy Bahr sworn (Spanish).

9:55 a.m. Plaintiff's rebuttal witness **Gloria Huizar Santoyo** resumes.

Direct examination by Plaintiff (Mr. Edstrom).

10:04 a.m. Cross examination by Defendant (Mr. Brittan).

10:06 a.m. Plaintiff rests.

10:07 a.m. Jury excused

Further discussion regarding jury instructions and the Court will modify jury instruction #15.

10:18 a.m. Discussion regarding stipulations going to the jury.

Defendant's oral motion for judgment as a matter of law on punitive damages claim (Mr. Brittan).

10:20 a.m. Argument by Defendant (Mr. Brittan).

10:22 a.m. Argument by Plaintiff (Mr. Edstrom).

ORDERED: Defendant's oral motion for judgment as a matter of law on punitive damages claim is **DENIED**.

10:26 a.m. Discussion regarding time limits for closing arguments.

10:27 a.m. Court in Recess

10:49 a.m. Court in Session - Jury not present

Court's remarks regarding schedule for jury instructions and closing .

10:52 a.m. Jury enters

Court reads jury instructions and verdict form.

11:24 a.m. No objection to jury instructions and verdict form as read by the Court.

11:26 a.m. Court in Recess

1:41 p.m. Court in Session - Jury enters

1:43 p.m. Closing argument by Plaintiff (Mr. Edstrom).

2:04 p.m. Closing argument by Defendant (Mr. Brittan).

2:34 p.m. Rebuttal argument by Plaintiff (Mr. Edstrom).

2:38 p.m. CSO sworn.

2:39 p.m. Jury excused to commence deliberations.

Court's remarks to counsel regarding availability.

2:49 p.m. Court in Recess - Subject to Call

4:59 p.m. Court in Session - Jury not present

Court informs counsel that jury will be sent home for the evening.

5:02 p.m. Jury enters

Court instructs jurors regarding the evening recess and they are excused until
Thursday, October 6, 2011, at 9:00 a.m.

5:05 p.m. Jury excused

Court's remarks to counsel regarding availability tomorrow.

5:05 p.m. Court in Recess - TRIAL CONTINUED.

TOTAL TIME: 2:44